

STATE OF NEW YORK

8043--B

2025-2026 Regular Sessions

IN ASSEMBLY

April 22, 2025

Introduced by M. of A. SIMONE, REYES, BURDICK, LAVINE, SIMON, WOERNER, BORES, ROMERO, GRIFFIN, R. CARROLL, LUNSFORD, WILLIAMS -- read once and referred to the Committee on Environmental Conservation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Environmental Conservation in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the environmental conservation law, in relation to octopus farming

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The environmental conservation law is amended by adding a
2 new section 13-0316-a to read as follows:

3 § 13-0316-a. Octopus; farming prohibited.

4 1. As used in this section "octopus" means any species belonging to
5 the order Octopoda.

6 2. No person shall sell, offer for sale, or trade any octopus that was
7 bred, raised, or harvested under controlled conditions for the purposes
8 of human consumption; provided, however, that this prohibition shall not
9 apply to any octopus that was taken while in a wild state, or that was
10 bred, raised, or harvested solely for bona fide scientific or educa-
11 tional purposes.

12 § 2. Section 71-0925 of the environmental conservation law is amended
13 by adding a new subdivision 7-d to read as follows:

14 7-d. If the violation was an act prohibited by subdivision two of
15 section 13-0316-a of this chapter, not to exceed one thousand dollars
16 for each octopus, or parts of such octopus, sold, offered for sale, or
17 traded in violation thereof.

18 § 3. This act shall take effect on the sixtieth day after it shall
19 have become a law. Effective immediately, the addition, amendment
20 and/or repeal of any rule or regulation necessary for the implementation
21 of this act on its effective date are authorized to be made and
22 completed on or before such effective date.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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